

		<i>Attorney Tianyu Ju is ordered to give notice of this ruling.</i>
2.	U.S. Technical Consultants, Inc. v. Cutter Aviation, Inc. 25-1530391	<i>(Continued)</i>
3.	Gonzalez v. FCA US, LLC 23-1337669	Before the Court is an unopposed motion for sanctions filed by defendants FCA US, LLC and Orange Coast Chrysler Dodge Jeep Ram Fiat against counsel for Plaintiffs, Strategic Legal Practice, APC, in the amount of \$7,124. For the reasons set forth below the motion is GRANTED. "A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (<i>Code of Civ. Proc. § 128.5, subd. (a).</i>) Sanctions may also be imposed for violation of local court rules, including ordering counsel or a party to pay to the moving party reasonable attorney fees incurred in making and/or appearing at the hearing on the motion. (<i>Code of Civ. Proc. § 575.2; OCSC Local Rule 318.</i>) Lastly, monetary sanctions may be imposed against a party or counsel, or both, for failure to comply with California Rules of Court pretrial and trial rules. (<i>Cal. Rules of Court, rule 2.30(b).</i>) Here, Defendants have shown (as do court records) that Plaintiffs' counsel has repeatedly failed to appear ready for trial or failed to appear for trial altogether in violation of <i>California Rules of Court, rule 3.1332(a)</i> and causing unnecessary delay. Plaintiffs' counsel has also failed to timely prepare, exchange, and submit required trial documents under Orange County Superior Court <i>Local Rule 317</i>, and failed to communicate with defense counsel in preparing trial documents or otherwise taking steps to comply with the court's trial-setting orders. (Declaration of Michelle R. Prescott ¶¶ 4-30, 32.) The Court therefore awards sanctions in favor of Defendants and against Strategic Legal Practice APC in the amount of \$7,124, which the Court finds reasonable and reasonably incurred as a result of the misconduct. <i>Counsel for Defendants shall give notice of this ruling.</i>
4.	Potter v. Gustafson 26-1554580	<i>(Continued)</i>
5.	Anabi Oil Corporation v. TTV Corp 26-1554180	Before the Court is a motion by Defendants TTV Corp., Thach Vo and Truc Tran (collectively, TTV) in which they seek leave to file a cross-complaint. The motion is GRANTED. The court finds that TTV's cross-complaint is transactionally related to plaintiff's complaint, (See <i>Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co.</i> (1991) 230 Cal.App.3d 30, 38-39) and that the interests of justice will be served by granting leave for TTV to file their cross-complaint. (<i>CCP §428.50(c)</i>). Ordinarily, the court does not consider the validity of the proposed amended pleading

		in deciding whether to grant leave to amend. (<i>Kittredge Sports Co. v. Superior Court (Marker, U.S.A.)</i> (1989) 213 Cal. App. 3d 1045, 1048) Accordingly, the motion is GRANTED. TTV shall file and serve the verified cross-complaint attached as Exhibit A to the declaration of Thomas J. Weiss within 14 days. <i>TTV shall give notice.</i>
6.	Hajjar v. Hyundai Motor America 25-1522162	The motion to compel arbitration of the claims of plaintiff Diana Hajjar (Plaintiff) filed by defendant Hyundai Motor America (Defendant) is DENIED. On a motion to compel arbitration, the moving party bears the burden of proving the existence of an applicable agreement and the party opposing arbitration bears the burden of proving any defense. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (California Arbitration Act); see also <i>Installit, Inc. v. Carpenters 46 Northern California Counties Conference Board</i> (N.D. Cal. 2016) 214 F.Supp.3d 855, 859 (Federal Arbitration Act).) Defendant seeks to compel arbitration of Plaintiff's claims based on an arbitration provision contained in Defendant's Owner's Handbook & Warranty Information (Warranty), which Defendant states accompanied the Vehicle. In the alternative, Defendant seeks to compel arbitration based on the arbitration provision contained in Defendant's Connected Services Agreement (CSA) between the parties. As to the Warranty, Defendant has offered no evidence that Plaintiff received any notice of, or agreed to, the Warranty's arbitration provision prior to her purchasing the Vehicle. Defendant does not claim that the Warranty or the arbitration provision therein was signed by Plaintiff or was even seen by her. Defendant has provided nothing to suggest Plaintiff consented to the agreement in the Warranty. Simply because the Warranty accompanied the Vehicle does not mean Plaintiff was aware of the arbitration provision or read it. Under California law, an offeree "is not bound by inconspicuous contractual provisions of which he [or she] was unaware, contained in a document whose contractual nature is not obvious." (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294.) "This 'principle of knowing consent applies with particular force to provisions for arbitration" (Id. at p. 1294.) There is no evidence Plaintiff had notice of the existence of an agreement to arbitrate by virtue of the Warranty. Thus, mutual assent is lacking. (See <i>Esparza v. Sand & Sea, Inc.</i> (2016) 2 Cal.App.5th 781, 790 [holding arbitration agreement unenforceable where offeree lacked a reasonable opportunity to read or learn of the arbitration provision at the time of signing].) In addition, equitable estoppel cannot apply here, as a warranty is not a traditional contract. It is effectively a unilateral promise to the consumer. (See <i>Gavaldon v. DaimlerChrysler Corp.</i> (2004) 32 Cal.4th 1246, 1258; <i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144